

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT

C.R. No.341-D of 2013

Naureen Maqbool and another
v.
Khuda Bakhsh and others

J U D G M E N T

Date of hearing	12.2.2026
Petitioners by	Raja Muhammad Sohail Iftikhar & Mr. Nadeem Ahmad Khan Kanju, Advocates.
Respondent No.1 by	Mr. Ahmad Mansoor Chishti, Advocate.
Respondent No.2 by	<i>Nemo</i>

Rasaal Hasan Syed, J. Respondent No.1 instituted suit for specific performance to enforce agreement of sale dated 09.7.2005 averring that respondent No.2 promised to sell the suit property to him for total sale consideration of Rs.2,75,000/- and that he was entitled to enforce the agreement through court.

2. Petitioners moved an application under Rule 10 of Order I, C.P.C. therein which was not opposed, in result, they were impleaded as defendant Nos.2 and 3. The suit was conceded by respondent No.2 while it was contested by the petitioners which, after trial, was decreed vide judgment dated 09.12.2011 by the learned Civil Judge. Aggrieved thereof the petitioners filed an appeal thereagainst in which they remained unsuccessful and which was dismissed by judgment dated 06.2.2013 of the learned Addl. District Judge, Chishtian. These judgments

and decree dated 09.12.2011 and 06.2.2013 are assailed before this Court through the instant revision petition.

3. Heard.

4. Points raised by the learned counsels in support of their case have been considered, the impugned judgments, evidence and pleadings of parties have been carefully perused and it is observed that for the reasons hereafter there is no substance in this petition and that the contentions raised in support of revision petition are legally and factually untenable.

5. Case set up in the plaint by respondent No.1 was that on 09.7.2005 respondent No.2, the owner of land measuring 22 kanals, agreed to sell the same for a consideration of Rs.2,75,000/-, sale agreement dated 09.7.2005 was executed in favour of respondent No.1, a sum of Rs.1,75,000/- was paid as earnest money. Respondent No.1 further received Rs.5,000/-, Rs.20,000/- and executed agreement of extension, the remaining amount of Rs.75,000/- was payable on 15.12.2005 at the time of execution of sale deed, respondent No.1 appeared before the Assistant Collector, Chishtian for attestation of mutation but respondent No.2 did not turn up. In the suit respondent No.1 prayed for interim relief and on his application injunctive order qua alienation of property was issued which was duly entered in the revenue record and that despite the fact that injunctive order had been issued and no sale could be possible in violation thereof, petitioners filed an application under Order 1, Rule 10, C.P.C. for their impleadment as party in the suit claiming that the petitioner No.2 as attorney of respondent No.2 had executed sale deed dated 08.3.2006 in favour of petitioner No.1. Respondent No.1 in his amended plaint claimed specific performance of the agreement of sale and also for

the annulment of the sale deed dated 08.3.2006 in favour of petitioner No.1 being violative of rule of lis pendens and being violative of injunctive order.

6. Suit was conceded by respondent No.2 after receiving balance sale consideration who made a statement on 18.1.2007. Petitioners as defendant Nos.2 and 3 contested the suit on the plea that petitioner No.2 allegedly held a power of attorney from respondent No.2 who had executed sale deed in favour of petitioner No.1. Issues were framed and evidence was recorded and after trial the learned Civil Judge decreed the suit by returning findings that respondent No.1 had proved execution of agreement of sale and payment of full price, the suit was also conceded by respondent No.2 vendor and that alleged sale deed in favour of petitioner No.1 by petitioner No.2, her husband was deemed to be void and otherwise legally untenable on account of fact that it was violative of injunctive order in the suit and also under rule of lis pendens.

7. Perusal of the impugned judgment shows that entire evidence of the parties was considered in depth and, thereafter, it was concluded that respondent No.1 had proved his case and established beyond doubt that on 09.7.2005 the agreement to sell was executed by respondent No.2 who received a sum of Rs.1,75,000/- at the time of agreement and thereafter Rs.5,000/- and Rs.20,000/- and also received Rs.75,000/-. Agreement Exh.P1, affidavit Exh.P2 and extension agreement Exh.P3 were produced in support of the case which was proved and also admitted by respondent No.1 by filing conceding written statement confirming the execution of agreement and affidavit. The balance amount of consideration of Rs.75,000/- was received and respondent No.1 made

statement on 06.2.2007 in the court to the effect that he having received the entire consideration amount had no objection to the grant of decree in favour of respondent No.1. The suit was only contested by the petitioners defendant Nos.2 and 3 whose stance was that through sale deed dated 08.3.2006 suit-property was transferred in favour of petitioner No.1 by petitioner No.2 by acting as duly appointed attorney of respondent No.2 who claimed status of bona fide purchaser on such basis.

8. While deciding issue No.3 in respect of the alleged sale deed dated 08.3.2006 the evidence produced by the parties was duly delved into and it was concurrently held that sale deed was void ab initio. Reason being that suit of respondent No.1 for specific performance of agreement was filed on 17.12.2005 wherein interim injunctive order against alienation of property was issued which was duly entered in the revenue record on 23.12.2005 and this fact was also confirmed by concerned patwari who appeared as PW4 and deposed that he had made entry of stay order in the record which was still existing and that he did not issue the copy of *fard* for alienation purposes. Exh.D1 relied upon by the petitioners was admittedly prepared and registered after the issuance of injunctive order and during the pendency of suit, in violation of injunctive order. In view of the settled rule any alienation of property in breach of injunctive order is deemed to be void and the court is bound to annul the same in addition to the proceedings for punishment of violator in accordance with law.

9. Considering the effect of alienation/transaction made by a party in violation of injunctive order it was observed in Muhammad Sabir Khan and 13 others v. Rahim Bakhsh and 16 others (PLD 2002 SC 303) to the effect that such transactions were bad in law and invalid,

firstly, as the same were effected by flouting court orders and, secondly, the same were hit by the doctrine of lis pendens, as such, they could not be allowed to perpetuate and that the argument that such action would only entail penal action for violation of court orders while the sale would not be adversely affected lacked substance as act entailing punishment under law would be illegal and could not be treated as valid. The plea of bona fide purchase was even otherwise not available to the petitioners being alleged transferee in violation of rule of lis pendens and also the order of court. In Muhammad Ashraf Butt and others v. Muhammad Asif Bhatti and others (PLD 2011 SC 905) it was observed to the effect that pending litigation nothing should be changed or introduced and that object of lis pendens was to protect and safeguard the parties to the suit and their rights and interest in the immovable suit property against any alienation made by either of the parties of that property in favour of a third person and that rights of the party that ultimately succeeds in the matter shall not be affected in any manner whatsoever and transferee shall acquire title subject to the final outcome of the lis and even purchaser for value without knowledge in ordinary judicial parlance as a bona fide purchaser in view of the rule/doctrine of lis pendens shall be bound by the result of the suit stricto sensu in all respects just as his transferor.

10. The sale deed under challenge was also void ab initio being a transaction which was claimed to have been made by the alleged attorney in favour of his wife which was legally impermissible. As to the other stance that respondent No.2 had agreed to sell the property on 21.2.2002 and that the sale deed was executed on the basis thereof, it was rightly observed by the courts below that

petitioner No.1 while appearing as DW5 in cross-examination had deposed that respondent No.2 had agreed to sell the property in her favour on 01.1.2006 and this fact was told by her to her counsel while in written statement filed on 20.4.2011 it was the version of the petitioners that respondent agreed to sell the suit-property in her favour on 23.4.2002 and that there was a contradiction. Even the witness produced by the petitioner DW4 Hafiz Mansoor Ahmad also deposed that the bargain was struck on 01.1.2006 and it was settled at the house of petitioner No.2. Contradictory stance to emerge detracted from credibility of such averment and courts below rightly concluded in the circumstances that the petitioners had failed to prove any bargain on 21.2.2002 and 23.4.2002 and that sale was violative of rule of lis pendens and in violation of injunctive order, as such, legally untenable.

11. An argument has also been attempted as to non-framing of proper issues which is also legally untenable. It was rightly observed by the court below that the issues were framed in the presence of parties' learned counsel who did not raise any objection to non-framing of any issue or improper framing of any issue and that the suit remained pending from 17.10.2005 till it was finally decided on 09.12.2011 and that during the pendency of suit petitioners never raised any objection on this plea and, as such, at belated stage objection to this effect could not be raised. Even otherwise the parties consciously led evidence on the points raised by them in the pleadings and produced evidence for and against their case and no prejudice could be shown to have been caused on this account.

12. On due examination of the evidence and also the pleadings, it is observed that no misreading and non-reading of evidence could be proved or shown from the

record and that the impugned judgments are based on correct analysis of evidence and application of correct law and no ground is made out for interference. Resultantly the revision petition being devoid of any substance is **dismissed**. There shall be no Order as to costs.

(RASAAL HASAN SYED)
JUDGE

Announced in open Court on 24.2.2026.

JUDGE

Approved for reporting

JUDGE

Rabbani